

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
AGUSTIN LOPEZ and MARIA PARAMO

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
N.Y.P.D. SERGEANT "LEPLANCH" and
N.Y.P.D. OFFICER "SABATANO"

Defendants.
-----X

Plaintiffs by their attorney, Paul H. Schietroma, P.C. complaining of the defendants,
upon information and belief, respectfully allege as follows:

THE PARTIES

1. Agustin Lopez and Maria Paramo reside at 541 Union Ave, Bronx, N.Y. 10455.
2. Defendant the City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant N.Y.P.D. Sergeant "Leplanch" (hereinafter referred to as "Leplanch") was, on February 28, 2016 and presently, an employee of the defendant City of New York, more particularly its Police Department and assigned to the 49th Precinct, in Bronx County, New York.
4. Defendant N.Y.P.D. Officer "Sabatano" (hereinafter referred to as "Sabatano") was, on February 28, 2016 and presently, an employee of the defendant City of New York, more particularly its Police Department and assigned to the 49th Precinct, in Bronx County, New York.

5. At the time and place of the occurrence, the individual defendants identified above were acting within the scope of their employment with the City of New York.
6. On May 31, 2016, within ninety days of the occurrence herein, (as defined by General Construction Law §§20 and 25-a) plaintiffs served upon the City of New York and the individual defendants their Notice of Claim setting forth the time when, the place where, and the manner in which the claim arose.
7. More than thirty days have elapsed since the presentation of said Notice of Claim and no adjustment or payment has been made by the City of New York or the individual defendants.
8. This action is being commenced within one year and ninety days of the date of the occurrence herein and the plaintiffs have complied with all statutory conditions precedent to the commencement of this action.

THE OCCURRENCE

9. On February 28, 2016 at approximately 4:00 am, Maria Paramo was driving home with her husband, Agustin Lopez and a friend, Elvia Garcia.
10. Maria Paramo was driving on Pelham Parkway near Bogart Avenue, Bronx, N.Y.
11. At the above time and place, while driving, Maria Paramo heard an unfamiliar noise coming from the car's engine.
12. Maria Paramo pulled the car over and came to a stop.
13. Both Maria Paramo and Agustin Lopez got out of the car and saw that fluid was leaking from the engine.
14. A police car containing Leplanch and Sabatano arrived at the scene.

15. Leplanch and Sabatano got out of the car.
16. Leplanch and Sabatano noticed the fluid on the floor.
17. Leplanch and Sabatano called for backup.
18. Leplanch and Sabatano accused Agustin Lopez of public urination.
19. Leplanch and Sabatano arrested Agustin Lopez.
20. Another police car arrived at the scene containing two additional police officers.
21. Agustin Lopez complained to Leplanch and Sabatano that the handcuffs were too tight and severely hurting his wrists.
22. His complaints were ignored.
23. Before driving off with Agustin Lopez, Leplanch confiscated Maria Paramo's car keys, accusing her of "having been drinking" and threatened to arrest her.
24. Leplanch gave one of the police officers who arrived as backup Maria Paramo's car keys before he left the scene.
25. Said police officer began to drive away in Maria Paramo's car, leaving Maria Paramo and Elvia Garcia stranded at the scene.
26. After driving a short distance, the police officer reversed, returned to the scene and instructed Maria Paramo and Elvia Garcia to get in the car, stating "I'm not going to leave you out here alone."
27. Upon arrival at the 49th Precinct, Maria Paramo demanded Agustin Lopez be released.
28. Before leaving the scene, Maria Paramo had taken a napkin and wiped up some of the liquid that had been leaking from the car.

29. At the 49th Precinct, Maria Paramo repeatedly tried to explain that Agustin Lopez did not urinate at the scene and that the liquid was from the car.
30. At approximately 6:30 am, Agustin Lopez was released and issued a summons to appear in Bronx Criminal Court on May 4, 2016.
31. Agustin Lopez was charged with violation of Administrative Code § 16-118(6): Public Urination.
32. Agustin Lopez appeared in the Bronx Criminal Court for this charge on May 4, 2016.
33. On May 4, 2016 said charge was dismissed.
34. The aforesaid occurrence and resulting serious personal injuries, including left and right wrist nerve damage, mental anguish, shame and humiliation and physical suffering were due solely to the recklessness and intentionally objectively unreasonable use of force by the individual defendants involved, as well as their abuse of power in arresting Agustin Lopez without probable cause and without any fault or wrongdoing on the part of the plaintiffs contributing thereto.
35. The aforesaid acts were all in violation of the plaintiffs' constitutional rights under both the United States and New York State's Constitution and were perpetrated by the defendants under color of state law.
36. Each cause of action which follows falls within one or more of the exceptions set forth in CPLR §1602, including sub-paragraphs 1(b), 2,5,7 and 11.

AS AND FOR A FIRST CAUSE OF ACTION
(FOR BATTERY)

37. Plaintiffs repeat and reallege each and every allegation contained above in paragraphs "1" through "36" inclusive with the same force and effect as if hereinafter set forth at length.

38. Leplanch and Sabatano on February 28, 2016 seized Agustin Lopez.

39. Said contact was harmful, wrongful under the circumstances and offensive.

40. The police officers involved intended to make, and did make, this contact without Agustin Lopez's consent.

41. By reason of the foregoing, plaintiffs have sustained compensatory damages against defendants in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and punitive damages against each of the police officers involved in Agustin Lopez's arrest in the amount of \$1,000,000 each.

AS AND FOR A SECOND CAUSE OF ACTION
(FOR FALSE ARREST)

42. Plaintiffs repeat and reallege each and every allegation contained above in paragraphs "1" through "41" inclusive with the same force and effect as if hereinafter set forth at length.

43. Leplanch and Sabatano on February 28, 2016 intended to, and did, confine Agustin Lopez.

44. Agustin Lopez was conscious of this confinement.

45. Agustin Lopez did not consent to this confinement.

46. His confinement was not otherwise privileged.

47 By reason of the foregoing, plaintiffs have sustained compensatory damages against defendants in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and punitive damages against each of the police officers involved in Agustin Lopez's arrest in the amount of \$1,000,000 each.

AS AND FOR A THIRD CAUSE OF ACTION
(MALICIOUS PROSECUTION)

48. Plaintiffs repeat and reallege each and every allegation contained above in paragraphs "1" through "47" inclusive with the same force and effect as if hereinafter set forth at length.

49. On February 28, 2016 the individual police officers involved initiated a criminal proceeding against Agustin Lopez in Criminal Court, Bronx County, charging him with violation of Administrative Code § 16-118(6): Public Urination.

50. Said prosecution was brought without probable cause and with malice.

51. Said criminal proceeding was terminated in plaintiff's favor on May 4, 2016.

52. By reason of the foregoing, plaintiffs have sustained compensatory damages against defendants in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and punitive damages against each of the police officers involved in Agustin Lopez's arrest in the amount of \$1,000,000 each.

AS AND FOR A FOURTH CAUSE OF ACTION
(FOR VIOLATION OF PLAINTIFF'S FEDERAL CONSTITUTIONAL RIGHTS)

53. Plaintiffs repeat and reallege each and every allegation contained above in paragraphs "1" through "52" inclusive with the same force and effect as if hereinafter set forth at length.

54. A police officer's use of force is "excessive" and in violation of the Fourth Amendment to the United States Constitution if it is "objectively unreasonable in light of the facts and circumstances known to the officers."
55. Under the facts and circumstances existing at the time of this occurrence:
- a) The severity of the alleged crime at issue was minimal.
 - b) Agustin Lopez did not pose an immediate threat to the safety of the officers involved or others.
 - c) Agustin Lopez did not actively resist his arrest nor did he attempt to evade arrest by flight.
56. Pursuant to Federal Civil Rights Law 42 USC §1983 Agustin Lopez was deprived of his federal constitutional and statutory rights under color of state law to be free from excessive force and wrongful arrest.
57. 42 USC §1983 provides in part that:
- every person who, under color of state law, subjects or causes to be subjected any citizen of the United States . . . to the deprivation of any rights, privileges, or immunities secured by the United States' Constitution and federal laws shall be liable to the party injured.
58. 42 USC §1983 creates a remedy for violations of constitutional and federal rights.
59. That the individual police officers' conduct was under color of state law.
60. That the individual police officers' conduct deprived Agustin Lopez of the right not to be subjected to "excessive force and wrongful arrest" as protected by the Constitution of the United States and the Fourth Amendment thereto.
61. That their conduct deprived Agustin Lopez of the right not to be subjected to "excessive

force and wrongful arrest” as protected by the Constitution of the United States and the Fourth Amendment thereto.

62. That the individual police officers involved conduct caused the injuries and damages sustained by Agustin Lopez.

63. By reason of the foregoing, plaintiffs have sustained compensatory damages against the individual defendants in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and punitive damages against each of the individual defendants involved in the amount of \$1,000,000 each.

AS AND FOR A FIFTH CAUSE OF ACTION
(FOR NEGLIGENT HIRING AND RETENTION)

64. Plaintiffs repeat and reallege each and every allegation contained above in paragraphs “1” through “63” inclusive with the same force and effect as if hereinafter set forth at length.

65. The defendant City of New York, more particularly its Police Department, has a duty to use reasonable care in the employment, training and supervision of its employees to find out whether they are competent to do their work without danger of harm to others.

66. The actions of Leplanch demonstrate a psychological disposition making him unfit to hold his position as a sergeant.

67. The actions of Sabatano, acting in concert with Leplanch, to deny the plaintiff his rights, demonstrate her lack of fitness to hold her position as a police officer.

68. The failure of the defendant City of New York, more particularly its Police Department, to adequately screen, train, evaluate, supervise and discipline the behavior of the individual

police officers involved is evidence of the reckless lack of regard for the rights of citizens, including the plaintiffs, and demonstrates a lack of due care which prudent and reasonable individuals in the New York City Police Department chain of command should show in executing their duties.

69. The defendant City of New York, more particularly it's Police Department, knew the individual defendants had a bad disposition, making them unfit to serve as police officers, but failed to use reasonable care to correct or remove them.

70. The defendant City of New York, more particularly its Police Department, knew of facts that would lead a reasonably prudent person to conduct an investigation which would have uncovered the bad disposition of the individual defendants, but failed to do so.

71. Agustin Lopez was not the first Hispanic person to be abused by Leplanch and Sabatano.

72. Their continued functioning as a police officers on February 28, 2016 is due to the breakdown of the chain of command in the New York City Police Department to live up to its mission statement of "courtesy, professionalism and respect."

73. The continued employment of the individual defendants presents a clear and present danger to the residents of the City of New York.

74. By reason of the foregoing, plaintiffs have sustained compensatory damages against the defendant the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION
(FOR ASSAULT)**

75. Plaintiffs repeat and reallege each and every allegation contained above in

paragraphs “1” through “74” inclusive with the same force and effect as if hereinafter set forth at length.

76. The individual defendants’ conduct at the scene put Maria Paramo in apprehension of imminent harmful or offensive contact, in that Leplanch took without permission, Maria Paramo’s car keys, accused her of “having been drinking” and threatened to arrest her.

77. Leplanch had the real and apparent ability to carry out the threat and Maria Paramo was in fear that he would.

78. By reason of the foregoing, plaintiff Maria Paramo has sustained compensatory damages against the individual defendants in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and punitive damages against each of the individual defendants involved in the amount of \$1,000,000 each.

**AS AND FOR A SEVENTH CAUSE OF ACTION
(FOR LOSS OF SERVICES)**

79. Plaintiffs repeat and reallege each and every allegation contained in paragraphs “1” through “78” above, as though more fully set forth herein at length.

80. Maria Paramo is the wife of Agustin Lopez.

81. Due to this occurrence, Maria Paramo has been deprived of the consortium of her husband, including but not limited to his services, companionship, affection, society, loss of physical relations and solace.

82. By reason of the foregoing, Maria Paramo has been damaged as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs demand judgment against the defendants on each cause of action, with interest from February 28, 2016 together with the costs and disbursements of this action, punitive damages against the individual police officers involved and attorney's fees pursuant to 42 U.S.C. §1988.

Dated: July 25, 2016

Yours, etc.
Paul H. Schietroma, P.C.

By: Paul H. Schietroma
Paul H. Schietroma
Attorney for Plaintiffs
1825 Park Avenue, Suite 604
New York, New York 10035
(212) 714-2100

VERIFICATION

STATE OF NEW YORK)
 ss.:
COUNTY OF NEW YORK)

Paul H. Schietroma, an attorney at law, duly admitted to practice in the Courts of this State, affirms under the penalties of perjury that:

I am the attorney for the plaintiffs in this action, that I have read the foregoing **Complaint** and upon information and belief, believe the contents therein to be true, based upon the communications, papers, reports and investigations contained in the file.

The reason this verification is made by me and not by the plaintiffs is that the plaintiffs reside outside the county in which I maintain my office.

Dated: July 25, 2016



Paul H. Schietroma

=====NOTICE OF ENTRY=====

PLEASE take notice that the within is a (certified)
true copy of a
duly entered in the office of the clerk of the within
named court on

Dated,

Yours, etc.

PAUL H. SCHIETROMA, P.C.
Attorney for Plaintiff(s)

Office and Post Office Address
1825 Park Avenue, Suite 604
New York, New York 10035

To:

Attorney(s) for

=====NOTICE OF SETTLEMENT=====

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement
to the Hon.

one of the judges of the within named Court, at

on at 9:30 a.m.

Dated,

Yours, etc.

PAUL H. SCHIETROMA, P.C.
Attorney for Plaintiff(s)

Office and Post Office Address
1825 Park Avenue, Suite 604
New York, New York 10035

To:

Attorney(s) for

Index No.:

Year:

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Defendants.

SUMMONS AND VERIFIED COMPLAINT

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Attorney for Plaintiff(s)

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